

TAB 15



Board of Education Report

File #: Rep-129-23/24, **Version:** 1

Application for Instructional Time Penalty Waiver
December 12, 2023
Office of the Chief Business Officer

Action Proposed:

Approval to submit an Instructional Time Penalty Waiver request to the State Board of Education (SBE) as a result of the 3-day work stoppage in fiscal year 2022-23.

Background:

Los Angeles Unified is statutorily required to offer 180 instructional days in a school year in all K-12 schools per Education Code 46208. In addition, each grade span must also meet minimum annual instructional minutes per Education Code 46207. Non-compliance with the instructional day and minutes requirements subjects the District to a significant fiscal penalty.

In the 2022-23 school year, all K-12 District schools were closed for three instructional days (March 21, 22, and 23) due to work stoppage, thereby reducing the instructional day offering to 177 days only. The three closure days also resulted in a shortfall in annual instructional minutes for the 9-12 grade span. The combined fiscal penalties for these two non-compliance issues is \$111.85M.

The District has the option to either pay the penalty or apply for the Instructional Time Penalty Waiver. In order for the SBE to consider the waiver application, the District is required to increase instructional days and minutes for two consecutive school years (i.e., 2023-24 and 2024-25), which the District has complied with through the Board-adopted calendars for 2023-24 and 2024-25, as well as the revised policy bulletin (BUL-6144.2, dated June 26, 2023) that specified the increased daily and annual instructional minutes.

Board approval is required to proceed with the waiver application.

Expected Outcomes:

Approval to submit the Instructional Time Penalty Waiver request to SBE as per Education Code Section 46206. The SBE requires approval from the Board of Education (Board) of the local education agency for the waiver application.

Board Options and Consequences:

Should the Board vote to approve, Los Angeles Unified will submit the Instructional Time Penalty Waiver application to the SBE. If the Board does not approve the action proposed, Los Angeles Unified will not submit the waiver application and will be assessed penalties by the State for non-compliance with required Instructional Days and Instructional Minutes.

Policy Implications:

No Policy Implications.

Budget Impact:

If the Board does not approve the submission of the waiver application, then the District will pay the penalty of \$111.85M due to instructional time loss in fiscal year 2022-23. If the Board approves the submission of the waiver application, and the SBE reviews and approves the waiver application, the District will not pay the penalty of \$111.85M due to instructional time loss in fiscal year 2022-23.

Student Impact:

Compliance with the Education Code ensures that Los Angeles Unified shall continue to operate and serve its student population responsibly.

Equity Impact:

None

Issues and Analysis:

None

Attachments:

None

Informatives:

None

Submitted:

12/05/23, Revision # 1

RESPECTFULLY SUBMITTED,



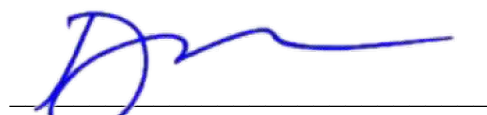
ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:



DAVID HART
Chief Business Officer
Office of the Chief Business Officer

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.